

21BBCV00971 21BBCV00971

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Case Number: 21BBCV00971 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION NAME: GOOD FAITH SETTLEMENT DETERMINATION

Hearing Date: 06/26/26

CASE NO./NAME: 21BBCV00971/AMY

R. AMIRA V. CMM, LLP, ET AL.

Moving Party: Plaintiff

Amy R. Amira

Responding Party: None

Notice: Sufficient as to Defendants Agustin Gonzalez, Home

Trend Developers, Inc., CMM, LLP, and Robert L. Schreiber; potentially insufficient as to Defendants Gregory Mogab

and Anthony Olmedo who are in pro per, but there is no record of them consenting

to electronic service per Cal. Rules of Court, rule 2.253, subd. (b)(3), and

Code Civ. Proc., § 1010.6, subd. (c)(1).

Ruling: DENY

without prejudice.

BACKGROUND

Plaintiff Amy R. Amira, as Trustee of

the Cynthia L. Amira Family Trust ("the Trust"), filed this fraud and

negligence action on November 12, 2021. She filed her operative third amended

complaint ("TAC") on May 23, 2025. The TAC asserts twelve claims against nine defendants: CMM, LLP ("CMM"), Gregory A. Mogab ("Mogab"), OMG Construction Management, LLC ("OMG"), Agustin Gonzalez ("Gonzalez"), Anthony Olmedo ("Olmedo"), Home Trend Developers, Inc. ("Home Trend"), Ira J. Boren ("Boren"), Robert Schreiber ("Schreiber") and derivatively and nominally defendant Hazelhurst Place Properties, L.P. ("Hazelhurst").

Plaintiff alleges defendants Mogab, Gonzalez, Olmedo, and OMG fraudulently induced her to invest in a rental property in North Hollywood, taking advantage of Mogab's position as her accountant at CMM.

On May 15, 2026, Plaintiff filed a motion for determination of good faith settlement. The motion is unopposed.

LEGAL STANDARD

CCP section

877.6(a)(1) provides that "[a]ny party to an action wherein it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff . . . and one or more alleged tortfeasors or co-obligors" (Code. Civ. Proc., § 877.6(a)(1).) "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Id., § 877.6(c).) Although a determination that a settlement was in good faith does not discharge any other party from liability, "it shall reduce the claims against the others in the amount stipulated" by the settlement. (Id., § 877(a).)

Factors to

consider in determining if a settlement was made in good faith include "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial." (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) Other relevant considerations include the financial conditions and insurance policy

limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.” (Id.)

The evaluation

of whether a settlement was made in good faith is required to “be made on the basis of information available at the time of settlement.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) “[A] court not only looks at the alleged tortfeasor’s potential liability to the plaintiff, but it must also consider the culpability of the tortfeasor vis-à-vis other parties alleged to be responsible for the same injury.” (TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 166.) “Potential liability for indemnity to a nonsettling defendant is an important consideration for the trial court in determining whether to approve a settlement by an alleged tortfeasor.” (Id.)

“The party

asserting the lack of good faith shall have the burden of proof on that issue.” (Code Civ. Proc., § 877.6(d).) The party asserting the lack of good faith can establish that the proposed settlement was not a settlement made in good faith by showing the settlement is so far “out of the ballpark” in relation to the Tech-Bilt factors as to be inconsistent with the equitable objectives of the statute. (Tech-Bilt, Inc., supra, 38 Cal.3d at 499-500.)

DISCUSSION

An unopposed motion for determination of good faith of settlement need not contain a full and complete discussion of the Tech-Bilt factors (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488) by declaration or affidavit; rather, a bare bones motion setting forth the grounds of good faith and a declaration containing a brief background of the case is sufficient. (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.)

The motion is unopposed, and no objections to the settlement have been filed. The motion establishes that the settlement agreement was reached in good faith and includes a brief background of the case.

However, the Court notes two problems.

First, the proof of service indicates electronic service on Defendants Gregory Mogab and Anthony Olmedo who are in pro per. (Motion, pp. 328-329 of pdf.) But, there is no record of these Defendants consenting to electronic service per California Rules of Court, rule 2.253, subdivision (b)(3), and Code of Civil Procedure section 1010.6, subd. (c)(1). It is therefore unclear to the Court if Defendants Gregory Mogab and Anthony Olmedo were properly served with notice of this motion.

Second, Plaintiff filed a notice of lodging of documents conditionally under seal in support of motion for determination of good faith settlement for what appears to be an unredacted version of the motion and supporting documents, but no such documents were lodged with the Court. (Notice of Lodging (5/15/26).) The motion on file with the Court contains redactions which the Court is otherwise unable to fully review and determine whether some of the settlement terms are proper.

Accordingly, Plaintiff's motion for determination of good faith settlement is DENIED without prejudice.

CONCLUSION AND ORDER

Plaintiff's motion for determination of good faith settlement is DENIED without prejudice.

Plaintiff shall provide notice of this order.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court